

24BBCV00057 24BBCV00057

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-28

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Case Number: 24BBCV00057 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Assignment and Restriction of Judgment Debtor

Hearing Date: 8/28/26

CASE NO.: 24BBCV00057

CASE NAME: 12001 Ventura Corporation v. Forward Studio City,
Inc.

Moving Party: Plaintiff 12001 Ventura Corporation.

Responding Party: Unopposed

Notice: Insufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested AND ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

On January 8, 2024, plaintiff 12001

Ventura Corporation (Judgment Creditor) originally filed this action as an unlawful detainer and then amended to pursue claims against Defendant, Forward Studio City, Inc. d/b/a Keller Williams Realty (Defendant), for breach of a written commercial lease agreement.

On November 14, 2024, this Court entered

Judgment in the amount of \$144,346.43 and costs in favor of Judgment Creditor against Judgment Debtor.

On February 27, 2026, Judgment Creditor filed

the instant motion. No opposition has been filed as of August 26, 2026.

LEGAL

STANDARD

Assignment of

Judgment Debtor's Interest

"[U]pon

application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7...all or part of a right to payment due or to become due."

(Code Civ. Proc., § 708.510(a).) The notice of the motion shall be served on the judgment debtor. Service shall be made personally or by mail. (Code Civ. Proc., § 708.510(b).)

"[In] determining whether to order an assignment or the amount of an

assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including the following: (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor; (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage

assignments, including earnings assignment orders for support; (3) The amount remaining due on the money judgment; and (4) The amount being or to be received in satisfaction of the right to payment that may be assigned." (Code Civ. Proc., § 708.510(c).)

Restraining
Judgement Debtor

"When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned." (Code Civ. Proc., § 708.520(a).)

DISCUSSION

Pursuant to Code of Civil Procedure section 708.510(b), service of the instant motion shall be made personally or by mail. (Code Civ. Proc., § 708.510(b).) Here, the motion was served by e-mail or electronic submission. (See Proof of Service.) Further, the proof of service does not adequately describe the documents that were served. (Id.)

CONCLUSION
AND ORDER

Plaintiff 12001
Ventura Corporation's motion for assignment and restriction of judgment debtor is DENIED.

MOVING PARTY
shall
provide notice.